

STATE OF NEW YORK

5691--B

2025-2026 Regular Sessions

IN SENATE

February 27, 2025

Introduced by Sen. BORRELLO -- read twice and ordered printed, and when printed to be committed to the Committee on Investigations and Government Operations -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- recommitted to the Committee on Investigations and Government Operations in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the town law and the public officers law, in relation to authorizing the town justice of the town of West Almond, county of Allegany, to be a nonresident of such town

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Section 23 of the town law is amended by adding a new subdivision 38 to read as follows:

38. Notwithstanding the provisions of subdivision one of this section, in the town of West Almond, in the county of Allegany, the person performing the function of town justice, need not be an elector of such town; provided that such person resides in the county of Allegany. Provided, however, the person performing the function of town justice in any other town shall be an elector of such town, unless otherwise provided by an act of the state legislature.

§ 2. Section 3 of the public officers law is amended by adding a new subdivision 77 to read as follows:

77. In the town of West Almond, in the county of Allegany, the provisions of this section requiring a person to be a resident of the political subdivision or municipal corporation of the state for which such person shall be chosen or within which such person's official functions are required to be exercised, shall not prevent a person from holding the office of town justice of the town of West Almond; provided that such person resides in the county of Allegany. Provided, however,

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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- 1 the person performing the function of town justice in any other town
- 2 shall be a resident of such town, unless otherwise provided by law.
- 3 § 3. This act shall take effect immediately.